

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	22CV408359	John Doe vs. The Harker School, et.al.	Plaintiff petitions this court to compel Defendant to submit to an independent medical examination. Defendant proposes six hour limitations, object to the administration of cognitive testing, and the administration of certain emotional function tests. The Defendant also opposes Plaintiff's expert witness Dr Winkel's expertise. Plaintiff placed his mental state at issue. Defendant's expert witness has the qualifications to render an expert opinion. Plaintiff's motion is DENIED.-
9:00 2	23CV428070	"Janine" Chun Lu vs. Marc Goubert, et.al.	See below
9:00 3	24CV436322	Exeter 1140-1150 Ringwood LLC vs. Gru Energy Lab, Inc.	Plaintiff moves this court to enter default judgment against Plaintiff and award monetary damages. Plaintiff filed for motion of breach of contract. Defendant never paid balance owed Plaintiff. Defendant never objected to this motion. Plaintiff's motions is GRANTED. Plaintiff's monetary sanctions in the amount of 580,128.47 is GRANTED.
9:00 4	24CV443183	Shenna Huynh vs Redis Labs, Inc. et.al.	Plaintiff moves this court for issue sanctions. Plaintiff seeks these remedies from a violation of a May 14 2026 court order. This court ordered monetary sanctions of \$10,320 against Defendant—it did deny Plaintiff's terminating sanctions. This court continued argument regarding the issue of evidentiary sanctions. As indicated in its July 28, 2026 order, this court is concerned with Defendant's response. But as indicated in its July 28, 2026 order, it does appear that Defendant is attempting to respond to voluminous discovery requests albeit late. This court finds that discovery has not been completed. This court seeks input from both counsel as to when discovery can be completed. This court will DENY Plaintiff's motion for evidentiary sanctions, but will leave the issue open to providing a new date of compliance for Defendant.
9:00 5-8	25CV47159	Shengsheng Guan vs. Tong Liu	Defendant petitions this court to grant four motions to compel. Plaintiff failed to answer any of the interrogatories propounded by the Defendant because it was above the required legal limit of thirty five requests. Defendant agreed and limited the amount to twenty-four requests. Plaintiff has articulated that it is working on the twenty four requests, but the 30 day deadline has not passed yet. Defendant agrees. This court will continue this matter to sometime past the 30 day deadline. Court will seek input from counsel as to new date.
9:00 9	25CV462132	Eugene P. Silveria Trust of the Silveria Family Recoverable Living Trust Created 3/28/2008, et.al. vs. Mo Khan, et.al.	Off calendar
9:00 10	26CV485320	Maxamuud Jaamac vs. Johnathan Yandoc	See below
9:01 1	21CV384369	Comerica Bank vs. Stanley McIntyre, Inc.	Defendant motions this court for a claim of exemption from funds that have been levied in his account. Defendant as judgment debtor has the burden of proving the funds being levied are exempt. Defendant submits that his monthly income is around \$3,000 but his expenses run over \$6,700. Defendant also has over \$33,000 in his Chase bank account. Defendant omits revenues generated from his contracting business which was reported as a gross income of over \$373,000. Defendant fails to meet his burden. Defendant's claim for exemption is DENIED.,

Calendar Line 2

Case Name: “Janine” Chun Lu v. Marc Goubert et al.

Case No.: 23CV428070

Defendants Marc Goubert (“Goubert”), Samuel Arvayo, and Serena Arvayo (collectively, “Defendants”) demur to the second, third, fourth, and fifth causes of action alleged in the first amended complaint (“FAC”) filed by “Janine” Chun Lu (“Lu”).

1. Second Cause of Action: Private Nuisance

The court SUSTAINS Defendants’ demurrer to the second cause of action with 10 days’ leave to amend. “It is well established in this state, as in other jurisdictions, that a landlord is not liable for acts of negligence of tenants.” (*O’Leary v. Herbert* (1936) 5 Cal.2d 416, 418 (*O’Leary*)). A “landlord is not liable for the consequences to others of a nuisance in connection with property in the possession and control of a tenant unless the landlord authorized or permitted the act which caused it to become a nuisance occasioning the injury.” (*Id.* at p. 419; see also *Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1373 [“Generally, a landlord is not responsible to other parties for the misconduct or injurious acts of his tenant to whom his estate has been leased for a lawful and proper purpose when there is no nuisance . . . at the time of the leasing. . . . To bring liability home to the owner of real property . . . the nuisance must be one which is in its very essence and nature a nuisance at the time of the letting, and not something which is capable of being thereafter rendered a nuisance by the tenant. . . .”], internal citations and quotation marks omitted.) “It has long been the law in California that [n]ot only is the party who maintains the nuisance liable but also the party or parties who create or assist in its creation are responsible for the ensuing damages.” (*City of Modesto Redevelopment Agency v. Superior Court* (2004) 119 Cal.App.4th 28, 38 (*City of Modesto*), internal quotation marks and citation omitted.)

The FAC does not allege that Goubert directly authorized or otherwise participated in any alleged nuisance. Nor does it allege that Goubert created or assisted in creating any alleged nuisance. Rather, it alleges that “Sam Arvayo and Serena Arvayo created and maintained a nuisance by the conduct described in the General Allegations, substantially and unreasonably interfering with Plaintiff’s use and enjoyment of her property. Defendant Marc Goubert maintained and perpetuated the nuisance by receiving actual notice, possessing legal authority to abate it, yet deliberately refusing to act while continuing to profit from rent payments.” (FAC, ¶¶ 67-68.)

The court is not persuaded by the authorities relied on by Lu in opposition. (Opposition, pp. 3:24-4:9.) *Day v. Lupo Vine Street, L.P.* (2018) 22 Cal.App.5th 62 (*Day*) involved a premises liability negligence action and “a dangerous condition on the land,” not nuisance